IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal under and in terms of Section 34 of the Right to Information Act No. 12 of 2016, read with Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Court of Appeal Case No.CA/RTI.08/2023

RTIC Appeal 17/2023

A. A. M. R. Ali,
140B,
Cassim Road,
Kalmunai - 10.

APPELLANT

Vs.

Sri Lanka Navy,
P.O. Box 593,
Colombo.

PUBLIC AUTHORITY

AND NOW BETWEEN

Vice Admiral Priyantha Perera,
Commander,
Sri Lanka Navy.
P.O. Box 593,
Colombo.
1A. Commander,
Sri Lanka Navy,
P.O. Box 593,
Colombo.

PUBLIC-AUTHORITY-APPELLANT

Vs.

A. A. M. R. Ali,
140B,
Cassim Road,
Kalmunai - 10.

APPELLANT-RESPONDENT

And

1. Justice Upaly Abeyratne (Retired)
   Chairman.

   1A. Mr. Daya Lankapura
   Chairman.

2. Justice Rohini Walgama (Retired),
   Commissioner.

   2A. Justice D.N. Samarakoon
   (Retired)
   Commissioner.

3. Ms. Kishali Pinto-Jayawardena,
   Commissioner.

4. Mr. Jagath Liyanarachchi,
   Commissioner.

5. Mr. A.M. Nahiya,
   Commissioner,
   All of Room No.203-204,
   BMICH Complex,
   Bauddhaloka Mawatha,
   Colombo 07.

ADDED-RESPONDENTS

Before: **R. Gurusinghe J.**

&

Dr. Sumudu Premachandra J.

Counsel: Sehan Soyza, S.S.C. for the Appellant.

Rushdhie Habeeb instructed by A.N. Manathunga Arachchi for the Appellant-Respondent.

Aruni Senarathna for the 1st – 5th Added Respondents.

Written Submissions: On behalf of the Public -Authority- Appellant filed on 18/02/2026.

On behalf of the Appellant Respondent filed on 20/02/2026.

Argued On: 27/01/2026

Judgement On: 19/03/2026.

Dr. Sumudu Premachandra J.

1] The case originates from a Right to Information (RTI) request submitted in September 2022 to the Sri Lanka Navy regarding media reports that former President Gotabaya Rajapaksa boarded the naval ship SLNS Gajabahu in July 2022. The request sought eight specific pieces of information, including confirmation of the boarding, the ship's name, the duration and areas of travel, the names of those accompanying him, the total cost incurred by the Navy, and the source of payment for the travel.

2] The Sri Lanka Navy initially rejected the entire request in November 2022, citing Section 5(1)(b)(i) of the RTI Act, which relates to information that could harm national security or defense. The requester subsequently appealed this refusal to the Right to Information Commission. Following hearings in 2023, the Commission issued a split decision on 29/08/2023. It upheld the Navy's refusal to disclose items 1 through 5 and item 8, but directed the Navy to release the information for items 6 and 7, specifically, the cost of the travel and who paid for it.

3] The Appellant, the Commander of the Sri Lanka Navy, has filed this petition to the Court of Appeal to challenge the Commission's order to release those two

items. The Navy argues that the Commission "grossly erred in fact and in law" by directing the release of the cost and payment details. The Appellant seeks to have that specific portion of the Commission's decision set aside, while maintaining the non-disclosure of the other six items of information.

4] The Navy's grounds for appeal center on national security and jurisdictional limits. They argue that the Commission failed to recognize that national security matters are best left to the judgment of the relevant authorities and wrongly required the Navy to prove that disclosure would lead to a specific threat. Furthermore, the Navy contends that revealing costs (items 6 and 7) would inevitably lead to the disclosure of the other protected information, such as the duration and nature of the movement, thereby undermining the initial security-based refusal.

5] The Public Authority Appellant now prays that this Court;

A) Issue notice of this appeal on the Appellant-Respondent and the Added-Respondents;

B) Call for and examine the case record of the Right to Information Commission in case No. RTIC Appeal 17/2023;

C) Sever and set aside that portion of the Decision of the Right to Information Commission dated 29/08/2023 (marked as PA-A5 (b)) directing the Appellant to release to the Respondent, the information requested under Items 6 and 7 of the Respondent's information request;

D) Affirm the decision of the Information Officer of the Appellant (PA-A1) rejecting the entirety of the information request of the Respondent acting in terms of Section 5 (1) (b) (i) of the Right to Information Act;

E) Dismiss the appeal of the Respondent before the Right to Information Commission marked PA-A3 to the Petition;

F) For costs; and

G) Such further and other relief as shall seem meet to this Court.

6] On the other hand, the Appellant-Respondent asserts that the Public Authority failed to comply with an RTI Commission order dated 29/08/2023. He argues that as a citizen and taxpayer, he has a right to information regarding the expenditures and processes of public affairs. The Respondent further says that the Public Authority failed to demonstrate how disclosing specific items (6 and 7 of the RTI request) would harm national security, which appears to be the primary justification used for withholding the data. He says that the ruling of RTI Commission was "lawful, rational, and consistent" with the RTI Act.

7] The information seeker says that his request for information regarding the Sri Lanka Navy's evacuation processes of former President Gotabhaya Rajapaksa and expenditures, arguing that such data is a matter of high public interest. He emphasizes that his goal is not to determine the legality of the Navy's actions, but to exercise his right as a citizen and taxpayer to oversee public spending. Furthermore, he contends that the Public Authority failed to demonstrate how disclosing this specific information would "directly and reasonably" harm national security.

8] I now consider the merits of this appeal. It is to be noted that the Appellant, as the Public Authority, seeks to prevent the disclosure of specific information regarding the travel costs of naval vessels; in fact, by request dated 01/09/2022, 8 questions were requested, however, questions 6 and 7 were asked to be answered by the Public Authority. Those were;

> 6) How much amount of money did Sri Lanka Navy cost for the travel of Former President Gotabhaya Rajapaksha in this ship?
> 7) Who paid this money? When did they pay?

9] All 8 questions were initially denied answering, specifically invoking Section 5(1)(b)(i) of the Right to Information Act No. 12 of 2016 to justify withholding the data. However, questions 6 and 7 were asked to be revealed by order dated 29/08/2023, against which this appeal lies.

10] The Appellant's argument is that the said disclosure of the cost of travel for naval ships would pose a significant threat to national security. They contend

that such financial data could allow third parties to calculate sensitive operational details, such as a ship's speed, fuel consumption, and operational range. This, in turn, could reveal supply dependencies, logistics constraints, and fueling locations, making the vessels vulnerable to sabotage or economic warfare.

11] Information is denied under section 5(1)(b)(i) of the Right to Information Act No. 12 of 2016. It says;

> *"(b) disclosure of such information– (i) would undermine the defence of the State or its territorial integrity or national security;"*

12] It is to be noted that the Constitutional framework of Sri Lanka, specifically Article 14A, establishes access to information as a fundamental right. The exemption for that right is mentioned in section 5 of the Right to Information Act No. 12 of 2016. It is to be borne in mind that constitutional provisions are more supreme than the subordinate statute, such as the Right to Information Act, and the section must be interpreted in line with the pulse of the legislature.

13] The Appellant's argument that the Court of Appeal's role under Article 140[1] is limited to a supervisory capacity, reviewing the legality and rationality of the RTI Commission's decision, rather than re-evaluating the merits of the case[2] cannot be accepted. It should be stressed that under section 34 of the RTI Act, a special right has been given to revisit the RTI commission's decision to the Court of Appeal, and it was (that right) not emanated under Article 140 of the Constitution, under writ jurisdiction. This is a statutory right that cannot be depreciated in any event.

14] When the backdrop scenario is concerned, the dispute originated from an RTI request seeking detailed information regarding the travel of former President Gotabaya Rajapaksa aboard a naval vessel, the LNS Gajabahu, during a period of acute civil unrest in July 2022, where he finally fled Sri Lanka aboard on 13/07/2022, and later abdicated the Executive Precedency.

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[1] 140. Subject to the provisions of the Constitution, the Court of Appeal shall have full power and authority to inspect and examine the records of any Court of First Instance or tribunal or other institution and grant and issue, according to law, orders in the nature of writs of certiorari, prohibition, procedendo, mandamus and quo warranto against the judge of any Court of First Instance or tribunal or other institution or any other person:

[2] **34.** (1) A citizen or public authority who is aggrieved by the decision of the Commission made under section 32, may appeal against such decision to the Court of Appeal within one month of the date on which such decision was communicated to such citizen or public authority.

15] Despite 8 questions where the Public Authority refused to disclose any information, the RTIC specifically ordered the release of items 6 and 7 of the requests, which pertained to the costs incurred by the Navy and the identity of the payer. The question is whether releasing that financial information affects the national security.

16] The Navy argues that the RTIC's decision is contrary to law, specifically Section 5(1)(b)(i) of the RTI Act No. 12 of 2016, which mandates the refusal of information that would undermine national security or state defence. They reasoned that the Commission erred in treating financial data as "ordinary" transactions. They say that harmless pieces of data are combined to reveal sensitive intelligence, and the Navy asserts that disclosing costs and fuel consumption allows specialised actors to calculate a ship's speed, operational range, and refuelling patterns, thereby exposing current naval vulnerabilities and logistics chains. This court is of the view that these are common specifications of a ship, and they could be calculated and ascertained by the public domain or ship manufacturers, and no protection is to be given as they are already in the common domain. Thus, the reason given by the Appellant not to release the information is unsatisfactory and cannot be accepted.

17] The argument that requested financial and contractual information tied to defense infrastructure can indeed fall within the national security exemption due to its broader implications should be considered by assessing the risk. In this case it is far remote. Further, that the contention, RTI Commission failed to offer protections under the Official Secrets Act No. 32 of 1955, which criminalizes the disclosure of information related to the "defences of Sri Lanka," is superseded by the section 4 of the RTI Act.

18] The said Official Secrets Act No. 32 of 1955 makes disclosure of said information an offence. The official secret has been interpreted in section 27 as;

" Official secret" means-

(i) any secret official code word, countersign or pass word;

(ii) any particulars or information relating to a prohibited place or anything therein;

(iii) any information of any description whatsoever relating to any arm of the armed forces or to any implements of war maintained for use in the service of the Republic or to any equipment, organization or establishment intended to be or capable of being used for the purposes of the defence of Sri Lanka; and

(iv) any information of any description whatsoever relating directly or indirectly to the defences of Sri Lanka;

19] However, section 4 of the RTI Act makes the provision that RTI Act prevails over other written laws. It says;

> *"The provisions of this Act shall have effect notwithstanding anything to the contrary in any other written law and accordingly in the event of any inconsistency or conflict between the provisions of this Act and such other written law, the provisions of this Act shall prevail."*

20] Thus, the said contention (official Secrets to be kept) too cannot be sustained as the spirit of the RTI Act is to be given for the fullest. In the light of Article 14A (2)[3] of the Constitution, which allows for restrictions in the interest of national security. The question here is that the safety of a former Head of State and Commander-in-Chief remains a matter of state security, particularly when the movement involved an emergency naval operation. Whether the impugned order requiring the release of the cost and payment details, asserting that such disclosure would serve as a "backdoor" to uncovering sensitive military capabilities, is a matter to be decided.

21] In support of this, it is to be noted that in ***Gunasekera and. In Others vs Ravi Karunanayake [2005] 1 SLR 18,*** Sriskandarajah J. held that the security of the State is the highest possible legal value. His Lordship notes;

> *"Salus Civitatis Suprema Lex has always been an axiom of the law. The security of the State is of the highest possible legal value."*

23] Further in ***Visuvalingam v. Liyanage*** [1984] 2 Sri LR 123, Wimalaratne, J. discussed the scope of the right to information as;

> *"As the fundamental right to the freedom of speech and expression includes the freedom of the recipient the petitioners as readers and contributors have a locus standi to seek relief under Article 126. But the fundamental right of*

[3] Article 14(2) No restrictions shall be placed on the right declared and recognized by this Article, other than such restrictions prescribed by law as are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals and of the reputation or the rights of others, privacy, prevention of contempt of court, protection of parliamentary privilege, for preventing the disclosure of information communicated in confidence, or for maintaining the authority and impartiality of the judiciary.

the recipient is also subject to the restrictions prescribed by law (including Emergency Regulations) in the interests of national security, public order and the protection of public health or morality or for the purpose of securing due recognition and respect for the rights and freedoms of others or of meeting the just requirements of the general welfare of a democratic society (Article 15 (7)).”

24] Thus, it is clear that right is subjected to restrictions stipulated under the law. However, the right to know every public act is a concept of good governance and democracy. In the Constitution Bench of India in ***The State of Uttar Pradesh v. Raj Narain & others*** - AIR 1975 SC 865, 50 years ago, Justice Mathew held:

"... In a government of responsibility like ours, where all the agents of the public must be responsible for their conduct, there can be but few secrets. ***The people of this country have a right to know every public act, everything, that is done in a public way, by their public functionaries. They are entitled to know the particulars of every public transaction in all its bearing****. The right to know, which is derived from the concept of freedom of speech, though not absolute, is a factor which should make one wary, when secrecy is claimed for transactions which can, at any rate, have no repercussion on public security. ... To cover with veil of secrecy, the common routine business, is not in the interest of the public.* ***Such secrecy can seldom be legitimately desired."*** [Emphasis is added]

25] Further, Justice Ravindra Bhat of Delhi High Court stressed the spirit of the RTI Act in his judgement in the Bhagat Singh vs ***CIC WP*** (c) no. 3114/2007 and went on to say:

“13. Access to information, under Section 3 of the Act, is the rule and exemptions under Section 8, the exception. Section 8 being a restriction on this fundamental right, must therefore be strictly construed. It should not be interpreted in manner as to shadow the very right itself. Under Section 8, exemption from releasing information is granted if it would impede the process of investigation or the prosecution of the offenders. It is apparent that the mere existence of an investigation process cannot be a ground for refusal of the information; the authority withholding information must show satisfactory reasons as to why the release of such information would hamper the investigation process. Such reasons should be germane, and the opinion of the process being hampered should be reasonable and based on

some material. Sans this consideration, Section 8(1)(h) and other such provisions would become the haven for dodging demands for information.

14. A rights based enactment is akin to a welfare measure, like the Act, should receive a liberal interpretation. The contextual background and history of the Act is such that the exemptions, outlined in Section 8, relieving the authorities from the obligation to provide information, constitute restrictions on the exercise of the rights provided by it. Therefore, such exemption provisions have to be construed in their terms; there is some authority supporting this view (See Nathi Devi v. Radha Devi Gupta 2005 (2) SCC 201; B. R. Kapoor v. State of Tamil Nadu 2001 (7) SCC 231 and V. Tulasamma v. Sesha Reddy 1977 (3) SCC 99). Adopting a different approach would result in narrowing the rights and approving a judicially mandated class of restriction on the rights under the Act, which is unwarranted."

26] In ***Union of India v. Central Information Commission and Anr***., 2012(284) ELT 335 (Del.), disclosure of all the letters sent by the former President of India, Shri K.R. Narayanan, to the then Prime Minister, Shri A.B. Vajpayee, between 28/02/2002 to 15/03/2002 relating to "Gujarat riots", was sought. In this matter, the High Court of Delhi has held that production of all material on which ministerial advice was based enjoys immunity from disclosure, even in proceedings initiated under the RTI Act on the ground that the RTI Act which was enacted by the Legislature under powers given under Constitution could not abrogate amend, modify or change bar under Article 74(2) of Constitution. Therefore, the RTI Act should be construed in the light of the provisions of the Constitution of India. Thus, a certain class of documents is entitled to constitutional protection from disclosure even under the RTI Act, in view of its inherent nature, which squarely falls within the ambit of "classified documents". But in the case at hand, the requested information cannot be classified as a threat to national security, as it does not directly relate to warfare or military operations.

27] When it comes to national security and threats to sovereignty, as defined in Black's Law Dictionary, sovereignty means[4] the supreme, absolute and

[4] SOVEREIGNTY. The supreme, absolute, and uncontrollable power by which any independent state is governed; supreme political authority; paramount control of the constitution and frame of government and its administration; the self-sufficient source of political power, from which all specific political powers are derived; the international independence of a state, combined with the right and power of regulating its internal affairs without foreign dictation; also a political

uncontrollable power by which an independent State is governed. Further, term integrity denotes the state of being whole, entire or undiminished. The Public authority is not under obligation to disclose the information that may prejudicially affect sovereignty and integrity of the Country. The definition of security is definitely broad and includes political, economic, environmental, social and human among other strands that impact the concept of security. If the information which relates to national security could genuinely cause harm and if it is released to the public or disclosure of such information generates anxiety or threatens the quality of life and may prejudicially affect security of the State, it should not be disclosed.

28] The relationship is somewhat peculiar in government agencies. In ***Public Information Officer, Joint Secretary to the Governor, Goa and anr. v. Manohar Parrikar and anr., and Special Secretary to the Government of Goa v. State Chief Information Commissioner and Anr***., AIR 2012 Bom71, the High Court of Bombay held that relationship between the President of India and the Governor of State is not fiduciary. Therefore, a copy of the report made by the Governor to the President through the Home Minister under Art. 356(1) of Constitution is not exempted from the disclosure under Section 8(1)(e) of the RTI Act (India).

29] In considering the importance of releasing information, it is noteworthy to consider Article 19 of the Universal Declaration of Human Rights. It says;

> *"Everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers."*

30] Further, in Article 19 of the International Covenant on Civil and Political Rights (ICCPR), states:

> *"(1) Everyone shall have the right to hold opinions without interference.*
> *(2) Everyone shall have the right to freedom of expression; this right shall include freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of his choice."*

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society, or state, which is sovereign and independent. Chisholm v. Georgia, 2 Dall. 455, 1 L.Ed. 440; Union Bank v. Hill, 3 Cold., Tenn., 325; Moore v. Shaw, 17 Cal. 218, 79 Am.Dec. 123; State v. Dixon, 66 Mont. 76, 213 P. 227 (Black's Law Dictionary, Revised Fourth Edition, ST. PAUL, MINN. WEST PUBLISHING CO. [1968], page 1568)

31] In considering national security and sovereignty issues, The Johannesburg Principles on National Security, Freedom of Expression and Access to Information, U.N. Doc. E/CN.4/1996/39 (1996)[5] has a role to play. It establishes international legal standards clarifying that freedom of expression and access to information are fundamental rights that may be restricted only by law for legitimate national security reasons. They prohibit restrictions that protect a government from embarrassment or conceal wrongdoing. Thus, the rule is transparency in government dealings allows applications. Those principles are highlighted as below;

> *"**Principle 1.2**: Protection of a Legitimate National Security Interest Any restriction on expression or information that a government seeks to justify on grounds of national security **must have the genuine purpose and demonstrable effect of protecting a legitimate national security interest**.*
>
> ***Principle 2**: Legitimate National Security Interest*
>
> *(a) A restriction sought to be justified on the ground of national security is not **legitimate unless its genuine purpose and demonstrable effect is to protect a country's existence or its territorial integrity against the use or threat of force**, or its capacity to respond to the use or threat of force, whether from an external source, such as a military threat, or an internal source, such as incitement to violent overthrow of the government*
>
> *(b) In particular, a restriction sought to be justified on the ground of national security is not legitimate if its genuine purpose or demonstrable effect is to protect interests unrelated to national security, including, for example, **to protect a government from embarrassment or exposure of wrongdoing**, or to conceal information about the functioning of its public institutions, or to entrench a particular ideology, or to suppress industrial unrest.*
>
> ***Principle 6**: Expression That May Threaten National Security Subject to Principles 15 and 16, expression may be punished as a threat to national security only if a government can demonstrate that:*
>
> *(a) the expression **is intended to incite imminent violence**;*

[5] https://hrlibrary.umn.edu/instree/johannesburg.html (accessed on 17/03/2026)

(b) it is ***likely to incite such violence****; and*
(c) there is ***a direct and immediate connection between the expression and the likelihood or occurrence of such violence****.*

Principle 8*: Mere Publicity of Activities That May Threaten National Security Expression may not be prevented or punished merely because it transmits information issued by or about an organization that a government has declared threatens national security or a related interest.*

Principle 12*: Narrow Designation of Security* ***Exemption A state may not categorically deny access to all information related to national security****, but must designate in law only those specific and narrow categories of information that it is necessary to withhold in order to protect a legitimate national security interest.*

Principle 13: *Public Interest in Disclosure In all laws and decisions concerning the right to obtain information****, the public interest in knowing the information shall be a primary consideration****."* [Emphasis is added]

32] Those principles are in line with the spirit of RTI Act. Sri Lanka became a member of the United Nations on December 14, 1955. The Universal Declaration of Human Rights (UDHR) is the cornerstone document for human rights, and Sri Lanka must obey the international treaty obligation as a nation and under the state policy, Article 27(15)[6]. It was drafted by representatives with different legal and cultural backgrounds from all regions of the world, the Declaration was proclaimed by the United Nations General Assembly in Paris on 10 December 1948 (General Assembly resolution 217 A) as a common standard of achievements for all people and all nations. These rules are persuasive very much to make a decision on the issue of national security. Thus, as a fundamental right, we hold that the right to know should be the rule and the exception should be the refusal.

33] Thus, Courts have elaborated on how to assess whether a restriction is reasonably justifiable. The nature of the assessment varies from case to case

[6] Article 27(15) of the Constitution; "The State shall promote international peace, security and co-operation, and the establishment of a just and equitable international economic and social order and shall endeavour to foster respect for international law and treaty obligations in dealings among nations."

depending on the information sought. In ***R. v. Oakes*** [1986] 1 SCR 103, p. 138-9, the Canadian Supreme Court in 1986 (known as the 'Oakes Test'), the accepted standard is:

> *"To establish that a limit is reasonable and demonstrably justified in a free and democratic society,* ***two central criteria must be satisfied. First,*** *the objective, which the measures responsible for a limit on a Charter right or freedom are designed to serve, must be "of sufficient importance to warrant overriding a constitutionally protected right or freedom": R. v. Big M Drug Mart Ltd., supra, at p. 352. The standard must be high …. It is necessary, at a minimum, that an objective relate to concerns which are pressing and substantial ….* ***Second*** *…. the party invoking [the limitation] must show that the means chosen are reasonable and demonstrably justified.* ***This involves "a form of proportionality test****": R. v. Big M Drug Mart Ltd., supra, at p. 352. … There are, in my view, three important components of a* ***proportionality test****.* ***First,*** *the measures adopted must be carefully designed to achieve the objective in question. They must not be arbitrary, unfair or based on irrational considerations. In short, they must be rationally connected to the objective.* ***Second,*** *the means, even if rationally connected to the objective in this first sense, should impair "as little as possible" the right or freedom in question: R. v. Big M Drug Mart Ltd., supra, at p. 352.* ***Third,*** *there must be a proportionality between the effects of the measures which are responsible for limiting the Charter right or freedom, and the objective which has been identified as of "sufficient importance"* [Emphasis is added]

34] On the facts currently before us, the application of the exemption contained in Section 5 (1) (b) (i) of the Act is unsustainable. There is a little logical connection between the requested statistics in this information request (that do not pertain to the personal details of individuals) and national security. We see that asserting that national security is at peril, is not a "blanket or unreviewable justification" for withholding information. It should be noted that any restriction must be strictly necessary, proportionate, and supported by a "demonstrable risk of serious harm to the State." In the case in hand, the Petitioner failed to establish a clear nexus between the disclosure of naval voyage expenditures and any genuine prejudice to national security under Section 5(1)(a) of the Right to Information Act. In the absence of specific evidence, the reliance on security is characterized as a "generalized assertion or mere assertion" cannot be a panacea, we hold it is insufficient to meet the statutory threshold.

35] In general, it is to be noted that Public Authorities intend to refuse requested information which seekers have to go to cumbersome procedure. It should be stressed that a public authority cannot merely assert a blanket claim of secrecy and protection under section 5 of RTI Act. Instead, they must provide cogent material demonstrating a "real or identifiable prejudice" to national security.

36] On the other hand, if the public interest over weights the harm under section 5 (4), still it (information) has to be revealed. Section states that;

> *"Notwithstanding the provisions of subsection (1), a request for information shall not be refused where the public interest in disclosing the information outweighs the harm that would result from its disclosure."*

37] In the above circumstances, we hold that the Navy, being the Public Authority has failed to prove that they can have a protection under 5(1)(b)(i) of the Right to Information Act. We therefore affirm the order dated 29/08/2023 of the Right to Information Commission. Consequently, the appeal is dismissed. No costs.

JUDGE OF THE COURT OF APPEAL

R. GURUSINGHE J.

I agree

JUDGE OF THE COURT OF APPEAL